

		initial burden, the burden did not shift to Plaintiffs and the motion must be denied without regard to Plaintiffs' evidence. "In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to the disposition of the motion." (Code Civ. Proc. § 437c(q).) Moving Party to give notice.
111	Ramirez v. FCA US, 2023-01367066	MOTION FOR SUMMARY JUDGMENT – GRANTED Defendant FCA US, LLC ("Defendant") moves for summary judgment on Plaintiff's complaint under the Song-Beverly Act. The Unopposed Motion is GRANTED pursuant to Rodriguez v. FCA US, LLC (2024) 17 Cal.5th 189. Defendant sustained its burden to establish the causes of action lack merit under Rodriguez because the subject vehicle was purchased used by Plaintiff (UMF No. 1-3) and the Song-Beverly Act only provides protection to purchasers of new motor vehicles. Thus, the burden shifted to Plaintiff to establish the existence of a triable issue of material fact. Plaintiff failed to file any opposition; and therefore failed to sustain his burden. Defendant to give notice and submit a proposed judgment.
112	Savalia v. Cigna Healthcare of Calif., 2026-01550386	DEMURRER TO COMPLAINT – SUSTAINED WITH LEAVE TO AMEND Defendant demurs to all 7 causes of action in Plaintiff's complaint. Plaintiff has not filed opposition to the demurrer. The Court may construe Plaintiff's failure to oppose the demurrer as an abandonment of Plaintiff's claims or an admission that the demurrer has merit. (See Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20 ["Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue

		in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”].) The failure to challenge a contention in a brief results in the concession of that argument. (DuPont Merck Pharmaceutical Co. v. Sup. Ct. (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) Plaintiff attempted to file an Amended Complaint which was rejected; Plaintiff believes it can amend the complaint to cure the deficiencies identified by the demurrer. The Court will therefore grant Plaintiff the opportunity to amend the pleading. Plaintiff shall file its Amended Complaint within 20 days of this order. Defendant to give notice.
113	Selene Finance v. Kirton, 2024-01412902	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT – CONTINUED DUE TO PENDENCY OF APPEAL The hearing on Plaintiff Selene Finance, LP’s renewed motion for leave to file a First Amended Complaint is CONTINUED to AUGUST 31, 2026, at 9:00 a.m. in Department N14. No further briefing will be permitted. The Court finds that the proposed amendments to the Complaint are embraced by the pending appeal (G065356), as Plaintiff seeks to remove causes of action asserted against Defendant Miller which were involved in the order appealed from. While the appellate court has issued an opinion, remittitur has not yet issued. The court notes that it “has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse